



CORRECTION AND CLARIFICATION – Re: Medscheme Holdings Inspection | H&S Chairperson Appointment | Additional OHSA Violation

1 message

Wilbur William Matthee <info@ethichawks.co.za>

Mon, 16 Feb 2026 at 13:10

To: Fezeka.Ngalo@labour.gov.za

Dear Ms Ngalo,

I write to correct one item in my previous email with full transparency, as I want to ensure the inspection team has a precisely accurate picture.

CORRECTION:

In my previous email I listed as item (b): "H&S Appointment Letter issued to Sr. WW Matthee as Acting H&S Chairperson."

I must clarify that I did not receive a formal written appointment letter for the Acting H&S Chairperson role first aid lead appointment. The appointment was communicated to me by the EH&S administration via teams— verbally and through the administrative process — and I acted upon it by discharging the full duties of the role, including:

- Authoring the Multi-Floor Safety Directive for the 2nd, 3rd, and 4th Floors
- Maintaining the Updated First Aid Daily Roster and Backup Plan
- Managing H&S compliance for 13 staff members including Work-From-Home contingencies
- Issuing directives to Team Leaders regarding OHSA compliance

WHY THIS IS ITSELF AN OHSA VIOLATION:

I respectfully draw your attention to the fact that the absence of a formal written appointment letter is not a gap in my complaint — it is an additional violation by the employer. OHSA Regulation 8 requires that EH&S representatives and chairpersons be formally appointed in writing. If the employer allowed me to function as Acting H&S Chairperson without issuing a formal written appointment, they failed to comply with their own statutory obligations under the Act.

I therefore respectfully request that during the inspection, the team specifically:

- (a) Request the employer to produce any written H&S appointment letter issued to Sr. WW Matthee
- (b) If no such letter exists — note the failure to issue a formal written appointment as a separate OHSA non-compliance finding
- (c) Request all EH&S administrative communications to Sr. WW Matthee regarding the Acting Chairperson role — which will establish that the appointment was made informally but acted upon in full
- (d) Cross-reference these findings against the Certificate of Service issued to Sr. WW Matthee, which omits any reference to H&S duties entirely

I apologise for any confusion caused by my earlier email. I wanted to ensure complete accuracy to support the integrity of the inspection process.

Yours faithfully,

Sr. Wilbur William Matthee
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16 February 2026